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March 16, 2026

By Electronic Delivery

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HVCITYCLERK

Tim Jordan
City Council President
Haverhill City Council
4 Summer Street,
Room 204
Haverhill, MA 01830

Re: Zoning Amendment / Battery Energy Storage Systems ("BESS")

Dear Mr. Jordan:

Reference is made to the above captioned matter. In that connection, on January 7, 2025 the former Economic Development Director submitted a Battery Energy Storage System Ordinance to the Council for your consideration. Since that time, the Mayor's office along with the Planning Director and myself have revised the 2025 submission. Additionally, the Department of Energy Resources has further issued guidance on BESS Zoning Ordinances. Finally, the Mayor has received comments from a potential developer of a BESS facility in the City.

I have attached for your advertisement and consideration a revised BESS Zoning Ordinance. I would ask that you table indefinitely the January 2025 Ordinance at the opening of the public hearing on this revised Ordinance. Further, I ask that the Council refer this Ordinance to the Planning Board for a public hearing and thereafter schedule a public hearing for the Council as well.

The Planning Director and I look forward to addressing questions you might have at the time of the public hearing.

Sincerely,

Atty. Lisa Mead, City Solicitor

Enclosure(s)

cc: Melinda E. Barrett, Mayor
Jacki Byerly, Planning Director

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